

IN THE HIGH COURT OF DELHI AT NEW DELHI

ARB.P. 402 of 2025

Meridian Infra Projects Limited

... PETITIONER

VERSUS

Konkast Engineering & Construction Private Limited

... RESPONDENT

**PETITION UNDER SECTION 11(6) OF THE ARBITRATION AND
CONCILIATION ACT, 1996**

A. FACTS AND ARBITRATION CLAUSE

1. The Petitioner and Respondent are parties to an EPC Contract dated 20.05.2024 for engineering, procurement and construction of four 33/11kV substations and associated transmission works at the Claimant's industrial park, valued at Rs. 18,60,00,000, containing an arbitration clause, being Clause 28 of the Contract (Annexure A-2).
2. Clause 28.1 of the Contract requires the parties to first attempt amicable settlement of any dispute, and Clause 28.2 provides that, failing settlement within 30 days of a written notice, the dispute shall be referred to arbitration by a sole arbitrator under the Arbitration and Conciliation Act, 1996, seated at New Delhi.
3. Disputes having arisen between the parties regarding certification and payment of RA Bills and delay in completion of the third substation of the works, the Petitioner issued a Notice Invoking Arbitration dated 22.06.2025 (Annexure A-1) calling upon the Respondent to concur in the appointment of a sole arbitrator within 30 days.
4. The Respondent has failed to respond to or concur with the said notice within the statutory period of 30 days computed from the date of the notice, necessitating the present petition under Section 11(6) of the Arbitration and Conciliation Act, 1996.
5. No arbitration proceedings are pending between the parties before any other forum, and this Hon'ble Court has jurisdiction to entertain this petition, the seat of arbitration under Clause 28.2 of the Contract being New Delhi.
6. It is just and necessary that this Hon'ble Court appoint an independent sole arbitrator to adjudicate the disputes between the parties, having regard to the value of the Contract and the urgency of resolving the certification disputes that are impeding further payment to the Petitioner.

B. DETAILED PARTICULARS OF DEALINGS BETWEEN THE PARTIES

7. On 20.05.2024, ePC Contract executed for Rs. 18,60,00,000, as more fully appears from the record of dealings between the parties.
8. On 03.06.2024, advance payment of Rs. 3,72,00,000 released, as more fully appears from the record of dealings between the parties.
9. On 18.06.2024, performance Bank Guarantee SBI/BG/2024/2217 furnished, as more fully appears from the record of dealings between the parties.
10. On 10.11.2024, first two substations energised; RA Bill 1-4 certified, as more fully appears from the record of dealings between the parties.

11. On 05.03.2025, third substation work delayed; Non-Conformance recorded, as more fully appears from the record of dealings between the parties.
12. On 22.06.2025, claimant issues notice invoking arbitration under Clause 28, as more fully appears from the record of dealings between the parties.

PRAYER

- a. Appoint an independent sole arbitrator to adjudicate the disputes between the parties;
- b. Pass such further orders as this Hon'ble Court deems fit.

VERIFICATION

I, Neha Kohli, Vice President (Contracts), verify that the contents of paragraphs 1 to 12 above are true and correct to my knowledge and belief.

Verified at New Delhi on this the 30th day of July, 2025.

For Meridian Infra Projects Limited
(Neha Kohli, Vice President (Contracts))
Mr. Rohan Kapadia, Advocate for the Claimant
Enrolment No. DEL/4471/2012

ANNEXURES TO THE PETITION

Annexure	Description
A-1	Notice Invoking Arbitration dated 22.06.2025
A-2	EPC Contract -- Clause 28 (Dispute Resolution)

ANNEXURE A-1 -- NOTICE INVOKING ARBITRATION

**Mr. Rohan Kapadia, Advocate
Advocate, High Court of Delhi**

Chambers: Chamber No. 214, Lawyers' Chambers, Delhi High Court, New Delhi - 110003

Ref. No.: MIP/ARB-NOTICE/2025/06

Date: 22.06.2025

To,
Konkast Engineering & Construction Private Limited
Plot 22, Sector 58, Faridabad - 121004, Haryana

Subject: Notice Invoking Arbitration under Clause 28 of the EPC Contract dated 20.05.2024

Dear Sirs,

Under instructions from my client, Meridian Infra Projects Limited, I refer to the EPC Contract dated 20.05.2024 for engineering, procurement and construction of four 33/11kV substations and associated transmission works at the Claimant's industrial park, valued at Rs. 18,60,00,000.

Disputes have arisen between the parties regarding certification and payment of RA Bills and delay in completion of the third substation, which disputes are not capable of amicable resolution.

My client hereby invokes arbitration under Clause 28 of the Contract and calls upon you to concur in the appointment of a sole arbitrator within 30 days, failing which my client shall approach the Hon'ble High Court of Delhi under Section 11 of the Arbitration and Conciliation Act, 1996 for such appointment.

This notice is issued without prejudice to my client's rights and contentions, all of which are expressly reserved.

Yours faithfully,

(Mr. Rohan Kapadia, Advocate)
Advocate for Meridian Infra Projects Limited

ANNEXURE A-2 -- EPC CONTRACT, CLAUSE 28 (DISPUTE RESOLUTION)

This EPC Contract is executed between Meridian Infra Projects Limited ("Owner") and Konkast Engineering & Construction Private Limited ("Contractor") for engineering, procurement and construction of four 33/11kV substations and associated transmission works at the Claimant's industrial park.

CLAUSE 28 -- DISPUTE RESOLUTION

28.1 The parties shall first attempt amicable settlement of any dispute arising out of or in connection with this Contract. 28.2 Failing settlement within 30 days of a written notice, the dispute shall be referred to and finally resolved by arbitration under the Arbitration and Conciliation Act, 1996, by a sole arbitrator appointed in accordance with the said Act, the seat and venue of arbitration being New Delhi, and the language of arbitration being English.